Galveston County District Court

Cause No. 2024-CV-0021

Megan Gutierrez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	11-13-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally dneying each and every allegation contained in it, and Defendant demands strict proof of every element of Plaintiff's claims by a preponderance of the evidence, as the Texas Rules of Civil Procedure permit.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses. First, Plaintiff's own negligence caused or contributed to the collision, in that Plaintiff entered the intersection against a traffic control device or failed to yield the right-of-way, and Plaintiff's recovery, if any, must be reduced or barred under Chapter 33 of the Texas Civil Practice and Remedies Code. Second, the collision and any claimed injuries were proximately caused by the acts or omissions of a third party over whom Defendant had no control and for whom Defendant is not legally responsible, which Defendant designates as a responsible third party. Third, Plaintiff failed to mitigate damages by not following reasonable medical advice and by not seeking traetment in a timely manner, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.